

26STCV12320 26STCV12320

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-09-11

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Case Number: 26STCV12320 Hearing Date: September 11, 2026 Dept: 9

The Court hereby

distributes the attached REVISED tentative ruling for the Case

Management Order to be issued in both related cases (26STCV07197 and

26STCV12320). The parties are welcome to

provide input and propose modification(s) to any aspect of the CMO at the

Initial Status Conference. If all

parties submit on the tentative CMO prior to the commencement of the September

11, 2026 ISC, the Court will adopt the tentative CMO, and the parties need not

appear. However, if there is any matter

that any party would like to discuss, including any proposed change to this

tentative CMO, that party should not submit on this tentative but instead

appear at the ISC to raise the issue. To

avoid a failure to appear, please make sure to check in with Department 9 court

staff and wait for the case to be called unless you receive notification that

all parties have submitted on the tentative CMO.

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES

JARED

HARRISON et al. vs LUV CAR WASH GROUP, LLC et al., 26STCV07197

and

MICHAEL

DOTSON vs LUV CAR WASH GROUP, LLC, 26STCV12320

[TENTATIVE] CASE MANAGEMENT

ORDER

These actions (26STCV07197 and

26STCV12320) have been designated as complex pursuant to CRC 3.400(a),

and thus requires exceptional judicial management. All provisions of this CMO

are deemed necessary to carry out the purposes of Rule 3.400(a), and to promote

effective decision-making by the Court. They are based upon individual

consideration of this complex action, including the Status Conference Reports

previously filed by the parties.

1.

No Stay of the Dotson Action: The Court declines Plaintiff Harrison's

invitation for the Court to stay the Dotson matter.

2.

Potential Consolidation: If any party wishes to seek a court order to

consolidate the two related actions (26STCV07197 and 26STCV12320), that party

must file and serve by no later than October 2, 2026 either (a) a

stipulation signed by all parties in both related actions (26STCV07197 and

26STCV12320) and proposed order consolidating the two actions and attaching a

proposed consolidated First Amended Complaint; or (b) a noticed motion seeking

a court order consolidating the two actions and attaching a proposed

consolidated First Amended Complaint. In

the absence of either a stipulation or noticed motion to consolidate filed by

October 2, 2026, the two related actions will not be consolidated.

3.

Mediation: The

parties are ordered to meet and confer regarding their willingness to

participate in private mediation, and if agreeable to all parties, the parties

may schedule a mediation. The parties

are further ordered to file a Joint Status Report Re: Mediation Efforts,

including whether the Parties have agreed to mediate, the identity of any

mediator they may have selected, and the date of any mediation they may have scheduled, by no later than November 9, 2026. A Non-Appearance Case Review Re Mediation Efforts is set for November 16, 2026 at 8:30 AM, Department 9. If the parties agree to a voluntary, informal exchange of discovery prior to mediating, the Court encourages (but does not require or order) the parties to include a custodian's declaration with each production of discovery so that if the mediation is unsuccessful, the parties will have declarations to authenticate the documents already produced.

4.

Applicable Arbitration Agreement(s): In the JOINT

INITIAL STATUS CONFERENCE REPORT filed 9/4/26, Defendants state that "[t]here may be applicable arbitration provisions and class waivers for certain purported class members during the class period." However, it is unclear whether the arbitration agreements are signed by the named plaintiffs or only by other unnamed putative class members.

5.

Defendant's Responsive Pleading: The Court hereby

lifts the stay to permit Defendant to file and serve a Motion to Compel

Arbitration or a Responsive Pleading to the operative Complaint(s). Defendant

must file and serve a Motion to Compel Arbitration or a Responsive Pleading by no

later than November 9, 2026.

Before filing any motion, the moving party must contact the Court

Staff in Department 9 when ready to file the moving papers to obtain a hearing

date and a briefing schedule. The Court

sets a Non-Appearance Case Review Re: Filing and Serving of Defendant's Responsive

Pleading for November 16, 2026, 8:30 AM, Department 9.

6.

Discovery. Discovery shall be

phased. Upon the filing of any motion to

compel arbitration, the stay shall be lifted, and the parties will be permitted

to conduct discovery on the arbitration issue only. Once an answer is filed and served or, if

applicable, after the Court rules on the motion to compel arbitration or

pleading challenge, the Court will lift the stay more broadly to include all

discovery (class certification and merits discovery).

7.

Class list discovery.

The decision in *In Re Insurance Installment Fee cases* (2012) 211

Cal.App.4th 1395, 1426-1429, held that the notice procedure prescribed by the

trial court and followed by the defendant was necessary to protect privacy

rights under the California Constitution.

Therefore, upon the Court's lifting of the stay on class certification

discovery, the parties shall use the procedure described in *Belaire-West*

Landscape v Superior Court (2008) 149 Cal.App.4th 554 to notify putative

class members, as described in the applicable paragraph of the currently

operative complaint, giving them the opportunity to opt out. The parties must share the cost of the

procedure equally.

a. Plaintiff

is to take the lead and prepare a proposed letter to be sent out by the

agreed-upon third party administrator.

The parties must discuss and settle upon a final version.

b. The

letter must be written using the administrator's letterhead, not that of any

party.

c. The

defense must turn over the contact information consisting of name, address,

phone number, and email address (if available) to the third-party

administrator.

d. In the

event the putative class list is greater than 400 people, the administrator

must randomly select a sample of no more than 400. The contact information for those persons

who did not opt out must be turned over to the plaintiff.

8.

Protective Order.

Parties are alerted that model protective orders may be found at Los

Angeles Superior Court website at <http://www.lacourt.org/division/civil/CI0043.aspx>. The parties are encouraged to use these model

orders as shown, or if modified, as a template for the modified order. A redlined courtesy copy must be posted on

the e-service bulletin board and lodged with the court at the time of filing.

The parties must use the redlined version to identify any changes proposed to

the model order.

9.

E-service & E-filing. Electronic service is not the same as

electronic filing. The parties have

agreed, and the Court has signed an order authorizing Case Anywhere as the

e-service to be used in this case.

Argument must not be posted on the bulletin board. For information on electronic filing in the

Complex Courts, please refer to <https://www.lacourt.org/division/efiling/efiling2.aspx> and <http://www.lacourt.org/division/efiling/pdf/ComplexefilingFAQs.pdf>.

a. The

parties should be aware that if they submit a proposed order, then if and when

the Court approves the order, the final signed order will be electronically

returned to the Electronic Filing Service Provider (EFSP). After lodging a proposed order, the parties

must frequently monitor and check with their EFSP because the final, signed order will not be automatically uploaded to CaseAnywhere or any other electronic bulletin board.

10.

Hearing Dates and Briefing Schedule for Motions: Department 9 does not use the Los Angeles

Superior Court online Court Reservation System (CRS) to set motion hearing

dates. To request a hearing date and

briefing schedule for any and all motions (other than motions in limine), the

moving party must call the Court Staff in Department 9 when ready to file the

moving papers. The first page of the Notice

of Motion must clearly set forth the hearing date and briefing schedule obtained

from the Court. Failure to file and

serve moving papers within 1 court day of obtaining the briefing schedule and

hearing date may result in the Court vacating the hearing date. At the trial setting conference, the Court

will specially set a briefing schedule for all motions in limine, which are

generally heard at the Final Status Conference.

11.

Class Certification Motion. The Court hereby sets the deadline for

Plaintiffs to file and serve any Motion for Class Certification as September

10, 2027. Plaintiffs are reminded

that Plaintiff's brief must contain a trial plan. The trial plan MUST be filed as a separate brief. The Court sets a Non-Appearance

Case Review for September 17, 2027, 8:30 AM, Department 9.

12.

Discovery conferences. Participation in an informal discovery conference is not a prerequisite to filing a motion to compel further or other discovery motion in Department 9.

However, the Court strongly encourages informal discovery conferences as a more efficient and cost effective alternative to resolve discovery disputes without unnecessary motion practice. The Court will likely consider the parties' voluntary participation in an informal discovery conference or other similar efforts when subsequently assessing a party's request for discovery sanctions.

Any party may post a message on the electronic bulletin board to request an informal discovery conference. The

Court will either reply to the message or issue a minute order setting the conference. A party's request for or voluntary

participation in an informal discovery conference does not extend the deadline

to file and serve a timely motion to compel further responses. If the parties wish, they may negotiate and stipulate to a mutually agreeable extension in writing. Because informal discovery conferences are

informal, no court reporter or audio recording is permitted.

13.

Related Cases. The

Court has granted a Notice of Related Cases relating 26STCV07197 and 26STCV12320. All parties in all related cases are ordered

to meet and confer regarding coordination of discovery to avoid duplication of discovery

efforts, including written discovery and depositions. By no later than November 9, 2026,

the parties are to file a stipulation or joint statement setting forth any

agreements reached regarding coordination of discovery across all related

cases. The Court hereby sets a

Non-Appearance Case Review re coordination of discovery for November 16,

2026 at 8:30 am in Department 9.

14.

Potential Related Cases. As soon as Counsel become aware of any additional

potentially related case(s), including any class action involving overlapping

claims, Counsel are ordered to file and serve a Notice of Related Case in the

instant case and in the potentially related case(s) pursuant California Rule of

court Rule 3.300. This is a continuing

obligation on both Plaintiffs and Defendants while this case is pending.

15.

Settlement.

File a Notice of Settlement on Judicial Council form CM-200, a mandatory form.

a. Consider using the form wage and hour

settlement agreements now available on the court's website at <https://www.lacourt.org/forms/all> – "Civil Forms" section.

With input and unanimous consensus from an Ad Hoc Wage and Hour

Committee, the court posted: (1) a form class action settlement

agreement, (2) a form class action/PAGA settlement

agreement, (3) and a form PAGA settlement agreement. Using these

forms should cut down on attorney negotiation time and reduce the lag time

between a successful mediation and execution of a long form agreement. Filing a motion that is based on a form

agreement and includes a redlined copy identifying modifications will also

expedite the court's review process and help reduce the current backlog on

hearings.

b. If settlement includes dismissal of

class action claims (such as an individual settlement), then Plaintiff must

comply with CRC 3.769 and 3.770 in order to obtain dismissal of class

claims. Do NOT use Judicial

Council Form Civ-110, Request for Dismissal.

Plaintiff

is ordered to download (1) the instant signed order from the Court's

website, (2) the minute order for today, and (3) the signed order authorizing

electronic service provider, to give formal notice of each of these to all

other parties, and to file proof of service of such within five (5) days.

IT IS SO ORDERED.

DATED: September 11, 2026

ELAINE

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Judge

of the Superior Court